

M/S Pawan Putra Ice And Cold Storage v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 December 2018 · Writ-C No. 40789 of 2018 · **Writ dismissed; relegated to Ombudsman under clause 7.10.**

HEADNOTE

A writ petition disputing an electricity bill under the U.P. Electricity Supply Code, 2005 was dismissed. The consumer has an efficacious remedy of approaching the Ombudsman under clause 7.10; the High Court declined to interfere.

FACTUAL SUMMARY

M/S Pawan Putra Ice And Cold Storage invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and four others, disputing an electricity bill issued under the Uttar Pradesh Electricity Supply Code, 2005. The petitioner sought High Court interference with the bill rather than using the Code's grievance-redressal machinery. A Division Bench of Abhinava Upadhyaya and Vivek Varma, JJ. heard the petition on 11 December 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Ombudsman as alternative remedy for billing dispute

HOLDING

A consumer disputing an electricity bill under the U.P. Electricity Supply Code, 2005 has an efficacious remedy of approaching the Ombudsman under clause 7.10; the High Court will not entertain a writ while that remedy remains available. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Writ challenging a disputed electricity bill dismissed; petitioner directed to the Ombudsman under clause 7.10. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

The Court did not examine the bill and dismissed the writ solely for alternative remedy. ¶ 1